



Staff Report

TO: Honorable Mayor and Members of the City Council
FROM: Steven D. Jones, Community Development Director
DATE: July 21, 2026
SUBJECT: Consideration of a Billboard Relocation Agreement with AMG Sign Company, Inc

Description: Consideration of approval to enter into and execute a billboard relocation agreement between the City and the AMG Sign Company, Inc. authorizing the previously approved but expired relocation of an existing billboard to the site at Highland Springs Avenue.

Motion:

If the City Council determines that staff's recommendation is appropriate, the following motion is provided:

I move to approve and authorize the City Manager, or designee, to enter into and execute a billboard relocation agreement with AMG Sign Company, Inc. reauthorizing the previously approved but expired billboard relocation to the site at Highland Springs Avenue and the I-10 freeway, subject to the applicant's at-risk/hold harmless undertaking for any activities conducted prior to formal permit issuance.

Recommendation:

Staff recommends that the City Council approve and authorize execution of a reauthorized billboard relocation agreement with AMG Sign Company Inc., enabling the previously approved relocation at Highland Springs Avenue and the I-10 freeway to proceed after expiring due to fabrication and financing delays. The updated agreement remains consistent with state law and the Beaumont Municipal Code and will continue to be subject to all permit, lighting, zoning, and safety requirements, along with the applicant's at-risk acknowledgment. Reauthorization supports the Elevate Beaumont 2040 General Plan by promoting orderly development and protecting scenic vistas through controlled billboard placement, ensuring the relocation aligns with community planning objectives while maintaining full regulatory compliance.

Discussion:

The City and the AMG Sign Company, Inc. previously negotiated and authorized a relocation agreement to move an existing billboard to the designated relocation site area at Highland Springs and the I-10 freeway. Although the relocation was approved, the agreement expired due to unexpected shipping delays involving fabrication materials and financing delays on the part of the outdoor advertiser. These issues prevented the completion of relocation within the required timeframe.

California Business & Professions Code Section 5412 allows local jurisdictions to enter into relocation agreements with billboard operators to facilitate the orderly movement of legal, existing billboards when required by development, right-of-way needs, or community planning objectives. Section 17.C.08.040 of the Beaumont Municipal Code (BMC) specifically authorizes the City to reapprove such agreements when relocation is consistent with City standards and when a subsequent relocation agreement is deemed appropriate.

Discussion:

The outdoor advertiser has requested that the City reauthorize the relocation previously approved but expired, and staff has reviewed the request for consistency with applicable state law and the municipal code. Reauthorization of the relocation agreement is permissible under BMC Chapter 17.C.08, which allows owners of existing billboards within the City to convert static copy, subject to certain requirements, and to enter into and execute a relocation agreement when circumstances warrant. The reauthorized relocation would meet applicable zoning, safety, lighting, and operational requirements.

Any relocation agreement approved under this action will remain subject to the filing and approval of a permit application pursuant to Section 17.07.060 of the BMC. This includes full review of construction plans, structural modifications, location compliance, illumination standards, and operational requirements. The project will additionally be subject to all requirements in Chapter 8.50 (Outdoor Lighting), including brightness limits, shielding and orientation standards, and compliance with the City's nighttime illumination regulations.

To facilitate the reauthorization of the expired relocation approval, staff required the AMG Sign Company, Inc. to submit an "at-risk" or hold harmless letter acknowledging that any work undertaken prior to formal permit issuance would be performed at the applicant's own risk. This letter was necessary because the original land use entitlement had expired, and retroactive reapproval is required before any relocation activities can be recognized as compliant. The hold harmless documentation ensures that the City is

protected from liability associated with the applicant's early action and clearly indicates that relocation work cannot be relied upon to vest rights until the new relocation agreement and associated permits are formally approved.

The Highland Springs and the I-10 freeway location remains eligible for consideration since no intervening regulatory changes prohibit the relocation proposal. Approval of the agreement will allow the City and the outdoor advertiser to continue supporting renewal of an already evaluated relocation proposal while ensuring full compliance with state law, local regulations, and applicable lighting and safety standards.

General Plan Alignment:

Approval of this item would be consistent with the Elevate Beaumont 2040 General Plan, including goals related to the protection and enhancement of scenic vistas and views (Goal 8.6.2) by restricting new billboards along the City's roads and highways. The approval of an agreement would facilitate the implementation of orderly development.

California Environmental Quality Act:

Pursuant the California Environmental Quality Act (CEQA), action on the item is recommended exempt from the CEQA based on Section 15378 of CEQA Guidelines since no direct physical change in the environment, nor a reasonably foreseeable indirect physical change in the environment is anticipated from the action to approve.

Staff recommends that the City Council consider approval of the agreement with AMG Sign Company, Inc. The entering into and execution of an agreement would allow the City and the outdoor advertiser to proceed with a previously reviewed and authorized billboard relocation proposal that expired due to circumstances outside the applicant's control, including fabrication and financing delays. Under Section 17.C.08.040 of the BMC and California Business and Professions Code Section 5142, the City is permitted to enter into and execute an agreement when relocation activities are consistent with sign regulations adopted and applicable state law.

Fiscal Impact:

The cost associated with the preparation of this staff report is \$150.

There is no direct fiscal impact associated with entering into and execution of a relocation agreement. Standard permit fees to be borne by AMG Sign Company, Inc. will apply upon submission of the required permit applications.

Alternatives:

The City Council may choose not to approve the Billboard Relocation Agreement and direct staff to deny the reauthorization request, requiring the applicant to submit a new proposal for consideration under all current City regulations and permitting requirements.

Attachments:

- A. At-Risk/Hold Harmless Acknowledgement
- B. Draft Relocation Agreement